

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Filed:

KEVIN REYES,

INDEX NO.:

Plaintiff,

Plaintiff designates Kings
County as the place of trial.

-against-

SUMMONS

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, TONY YUNG, JOHN DOE (unidentified police
officer)

The basis of venue is
the location of the incident
pursuant to CPLR 504(3)

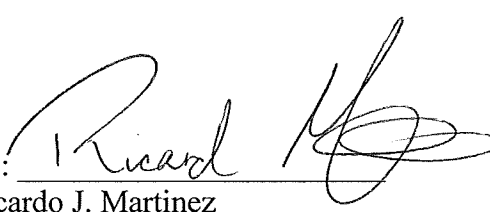
Defendants.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
November 20, 2019

By: 

Ricardo J. Martinez

LEAV & STEINBERG, LLP

Attorneys for Plaintiffs

KEVIN REYES

75 Broad Street, Suite 1601

New York, New York 10004

(212) 766-5222

PLEASE FORWARD TO YOUR INSURANCE COMPANY

Defendants' Addresses:

CITY OF NEW YORK

100 Church Street

New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT

1 Police Plaza

New York, NY 10007

TONY YUNG

66th Precinct

5822 16th Avenue

Brooklyn, NY 11204

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

KEVIN REYES,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, TONY YUNG, JOHN DOE (unidentified police
officer)

Defendants.

INDEX NO.:

VERIFIED COMPLAINT

Plaintiff, KEVIN REYES, by his attorneys, LEAV & STEINBERG, LLP, as and for her
Complaint, respectfully alleges, upon information and belief:

CONDITIONS PRECEDENT

1. The Plaintiff, KEVIN REYES, at all times herein mentioned was and still is a
resident of the City and State of New York, County of Kings.

2. At all times hereinafter relevant, Defendant CITY OF NEW YORK (hereinafter
referred to as "CITY"), was a municipal corporation, duly organized and existing under, and by
virtue of, the laws of the State of New York.

3. That at least 60 days prior to the commencement of this action, a verified notice in
writing, setting forth the time, place and circumstances surrounding the occurrence of the accident
sued herein, was duly served upon the Defendant CITY OF NEW YORK.

4. That more than thirty (30) days have elapsed since said demand or claim upon which
this action is founded was presented to the Defendant CITY OF NEW YORK for adjustment, and
that they or their agents, servants and/or employees have neglected and/or refused to make any
adjustment or payment thereon within thirty (30) days after said presentation was made and no

settlement has been made.

5. That this action is commenced within one (1) year from June 6th, 2019, the date of the subject loss.

GENERAL ALLEGATIONS

6. That at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as "NYPD"), was and still is a public authority and/or agency of the defendant CITY OF NEW YORK (hereinafter referred to as "CITY") duly authorized to and doing business in the City and State of New York, County of Kings.

7. That at all times hereinafter mentioned, the NYPD was a subsidiary, agency and/or otherwise under the auspices and control of the defendant CITY.

8. At all times herein mentioned, the NYPD was and remains a department of defendant CITY.

9. That at all times hereinafter mentioned, defendant CITY was and is responsible for the actions of the NYPD, its agents, servants and/or employees.

10. On June 6th, 2019, Plaintiff KEVIN REYES was the operator of a certain motorized bike.

11. On June 6th, 2019, defendant CITY was the owner of a certain motor vehicle bearing New York State license plate number (NYPD) 4760-19.

12. On June 6th, 2019, defendant CITY was the registered owner of a certain motor vehicle bearing license plate number (NYPD) 4760-19.

13. On June 6th, 2019, defendant CITY was the titled owner of a certain motor vehicle bearing license plate number (NYPD) 4760-19.

14. On June 6th, 2019, defendant CITY was the lessee of a certain motor vehicle bearing license plate number (NYPD) 4760-19.

15. On June 6th, 2019, defendant CITY was the lessor of a certain motor vehicle bearing license plate number (NYPD) 4760-19.

16. On June 6th, 2019, defendant CITY maintained a certain motor vehicle bearing license plate number (NYPD) 4760-19.

17. On June 6th, 2019, defendant CITY controlled a certain automobile bearing license plate number (NYPD) 4760-19.

18. On June 6th, 2019, defendant CITY managed a certain motor vehicle bearing license plate number (NYPD) 4760-19.

19. On June 6th, 2019, NYPD was the owner of a certain motor vehicle bearing license plate number (NYPD) 4760-19.

20. On June 6th, 2019, NYPD was the lessee of a certain motor vehicle bearing license plate number (NYPD) 4760-19.

21. On June 6th, 2019, NYPD was the lessor of a certain motor vehicle bearing license plate number (NYPD) 4760-19.

22. On June 6th, 2019, NYPD was the registered owner of a certain motor vehicle bearing license plate number (NYPD) 4760-19.

23. June 6th, 2019, NYCPD was the titled owner of a certain motor vehicle bearing license plate number (NYPD) 4760-19.

24. On or June 6th, 2019, the NYPD maintained a certain motor vehicle bearing license plate number (NYPD) 4760-19.

25. On June 6th, 2019, the NYPD controlled a certain motor vehicle bearing license plate number (NYPD) 4760-19.

26. On June 6th, 2019, defendant POLICE OFFICER EDWARD McCLAIN was the operator of a certain motor vehicle bearing license plate number (NYPD) 4760-19.

27. On June 6th, 2019, the automobile bearing license plate number (NYPD) 4760-19

was being operated by defendant TONY YUNG with the express knowledge, consent and/or on the business of its owner defendant CITY

28. On June 6th, 2019, the automobile bearing license plate number (NYPD) 4760-19 was being operated by defendant TONY YUNG with the express knowledge, consent and/or on the business of its owner the NYPD.

29. On June 6th, 2019, the automobile bearing license plate number (NYPD) 4760-19 was being operated by defendant TONY YUNG within the course and scope of his employment as a New York City police officer.

30. On June 6th, 2019, defendant POLICE OFFICER "JOHN DOE was the operator of a certain New York City Police Department motor vehicle.

31. On June 6th, 2019, plaintiff KEVIN REYES was lawfully operating a motorized bike while at or near the intersection of 54th Street and 20th Avenue, in the County of Kings, City and State of New York.

32. That at all times herein mentioned, the vehicle traffic lanes at or near the intersection of 54th Street and 20th Avenue, was and still is a public roadway and/or thoroughfare in the County of Kings, City and the State of New York.

33. On June 6th, 2019, at the aforesaid location, the vehicle owned by defendant CITY and operated by defendant POLICE OFFICER TONG YUNG came into contact and struck the plaintiff's vehicle.

AS AND FOR A FIRST CAUSE OF ACTION

34. Plaintiff repeats, reiterates, and realleges each and every allegation of Paragraphs numbered "1" through "33", inclusive, of this Complaint, as if same were fully set forth herein at length.

35. That the aforesaid incident occurred solely and wholly through the negligence, carelessness, and/or recklessness of the Defendants without any negligence on the part of the Plaintiff contributing thereto.

36. That the defendants were negligent, reckless and/or grossly negligent, jointly and severally, in the ownership, operation, management, maintenance and control of their motor vehicle, in failing to keep same under careful, lawful and proper control; in operating their vehicle at a dangerous, excessive and unlawful rate of speed under the circumstances; in failing to look; in failing to see; in failing to avoid this accident; in losing control of their vehicle; in failing to yield the right of way; in failing to apply their brakes in a proper and timely fashion; in failing to equip their vehicle with proper and necessary operating equipment including, but not limited to, brakes and steering equipment; in failing to properly utilize the operating equipment of their vehicle; in failing to use proper and good judgment in the operation of their vehicle; in failing to slow and/or stop their vehicle in a proper and timely manner in order to avoid this occurrence; in causing, permitting and/or allowing their vehicle to come into contact with plaintiff's vehicle; in operating their vehicle in a reckless manner; in failing to avoid coming into contact with plaintiff's vehicle; in rear-ending the plaintiff's vehicle; in the use of the defendants vehicle as a weapon; in failing to use the brakes and/or steering equipment of their vehicle in a proper and timely manner; in failing to heed and obey the traffic rules and regulations governing the operation of motor vehicles in the State of New York; in failing to properly and safely effectuate a chase and/or groundless stops; in failing to give plaintiff an opportunity to avoid this occurrence; in failing to operate their vehicle in such a manner and with reasonable care to avoid colliding with plaintiff; in failing to use all due care and caution in the operation, management

and control of their vehicle; in proceeding in violation of and in disregard to the safety of others; in that defendants actions were gross, wanton, reckless and willful; in violating the applicable laws, rules, ordinances, statutes and regulations in such cases made and provided; and in otherwise being negligent, careless and reckless all without any culpable conduct on the part of plaintiff's decedent.

37. That Defendants' negligence was the proximate cause of Plaintiff's injuries.

38. The limited liability provisions of Article 16 of the CPLR do not apply pursuant to one or more of the exceptions contained in CPLR 1602.

39. That by reason of the foregoing, the Plaintiff was caused to sustain severe and serious personal injuries to her mind and body, some of which, upon information and belief, are permanent with permanent effects of pain, disability, disfigurement and loss of body function. Further, the Plaintiff was caused to expend and become obligated for diverse sums of money for the purpose of obtaining medical care and/or cure in an effort to alleviate the suffering and ills sustained as a result of this incident and upon information and belief, may continue in that way into the future.

40. That by reason of the foregoing, the Plaintiff was damaged in an amount, which exceeds the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

41. Plaintiff repeats, reiterates, and realleges each and every allegation of Paragraphs numbered "1" through "40", inclusive, of this Complaint, as if same were fully set forth herein at length.

42. At all times herein mentioned, defendant CITY operated and maintained police forces charged with the duty and responsibility of maintaining the peace in the City of New York.

43. At all times herein mentioned, defendant CITY operated, managed and controlled NYPD.

44. At all times herein mentioned, defendant CITY operated, maintained, managed, supervised and controlled a police department as part of and in conjunction with its municipal functions.

45. At all times herein mentioned, defendant CITY employed police officers

46. At all times herein mentioned, defendant CITY supervised the NYPD.

47. At all times herein mentioned, defendant CITY supervised the NYPD and its personnel.

48. At all times herein mentioned, defendant CITY supervised the NYPD and its personnel, including its police officers.

49. At all times herein mentioned, defendant CITY supervised the NYPD, and its personnel, including defendant POLICE OFFICER TONY YUNG.

50. At all times herein mentioned, defendant CITY supervised the NYPD, and its personnel, including defendant POLICE OFFICER "JOHN DOE".

51. At all times herein mentioned, the NYPD employed police officers.

52. At all times herein mentioned, the NYPD supervised its personnel.

53. At all times herein mentioned, the NYPD supervised its personnel, including its police officers.

54. At all times herein mentioned, the NYPD supervised its personnel, including defendant POLICE OFFICER TONY YUNG.

55. At all times herein mentioned, the NYPD supervised its personnel, including defendant POLICE OFFICER "JOHN DOE".

56. At all times herein mentioned, defendant POLICE OFFICER TONY YUNG was an employee of defendant CITY.

57. At all times herein mentioned, defendant POLICE OFFICER TONY YUNG was an employee of the NYPD.

58. At all times herein mentioned, defendant POLICE OFFICER "JOHN DOE" was an employee of defendant CITY.

59. At all times herein mentioned, defendant POLICE OFFICER "JOHN DOE" was an employee of the NYPD.

60. At all times herein mentioned, defendant CITY employed and supervised the defendant POLICE OFFICER TONY YUNG.

61. At all times herein mentioned, defendant CITY employed and supervised the defendant POLICE OFFICER "JOHN DOE".

62. At all times herein mentioned, the NYPD employed and supervised the defendant POLICE OFFICER TONY YUNG.

63. At all times herein mentioned, the NYPD employed and supervised the defendant POLICE OFFICER "JOHN DOE".

64. At all times herein mentioned, defendant POLICE OFFICER TONY YUNG was the employee of defendant CITY, duly appointed and acting as a police officer for the NYPD, and was

acting in the course and scope of their employment.

65. At all times herein mentioned, defendant POLICE OFFICER “JOHN DOE” was the employee of defendant CITY, duly appointed and acting as a police officer for the NYPD, and was acting in the course and scope of their employment.

66. At all times herein mentioned, defendant POLICE OFFICER TONY YUNG was the employee of defendant CITY, duly appointed and acting as a police officer for the NYPD and acting in furtherance of the interests and business of his employer.

67. At all times herein mentioned, defendant POLICE OFFICER “JOHN DOE” was the employee of defendant CITY, duly appointed and acting as a police officer for the NYPD and acting in furtherance of the interests and business of his employer.

68. At all times herein mentioned, defendant POLICE OFFICER TONY YUNG was engaged in conduct incidental to the performance of his functions in the course of his duties as employee of the defendants.

69. At all times herein mentioned, defendant POLICE OFFICER “JOHN DOE” was engaged in conduct incidental to the performance of his functions in the course of his duties as employee of the defendants.

70. On June 6th, 2019, defendant POLICE OFFICER TONY YUNG was assigned and working at the 66th Precinct, located at 5822 16th Avenue, Brooklyn, New York.

71. On June 6th, 2019, defendant POLICE OFFICER “JOHN DOE” was assigned and working at the 41st Precinct, located at 5822 16th Avenue, Brooklyn, New York.

72. At all times herein mentioned, defendants had the duty to ensure that their actions, activities and behavior conformed to a certain standard of conduct established by the law for the

protection of civilians, including the plaintiff, against unreasonable risk of harm.

73. On June 6th, 2019, the plaintiff KEVIN REYES was unlawfully, illegally, unjustifiably, intentionally, maliciously, wantonly, recklessly and without cause, reason or justification, assaulted with a motor vehicle operated by defendant POLICE OFFICER TONY YUNG without just cause or provocation.

74. On June 6th, 2019, the plaintiff KEVIN REYES was unlawfully, illegally, unjustifiably, intentionally, maliciously, wantonly, recklessly and without cause, reason or justification, assaulted with the motor vehicle operated by defendant POLICE OFFICER "JOHN DOE" without just cause or provocation.

75. On June 6th, 2019, plaintiff's KEVIN REYES motorized bike was violently, forcibly, improperly and purposely struck by the vehicle being operated by defendant POLICE OFFICER TONY YUNG without just cause or provocation.

76. On June 6th, 2019, plaintiff KEVIN REYES motorized bike was violently, forcibly, improperly and purposely struck by the vehicle being operated by defendant POLICE OFFICER "JOHN DOE" without just cause or provocation.

77. That on June 6th, 2019, plaintiff KEVIN REYES was wantonly, intentionally, maliciously, illegally and brutally assaulted, attacked and violently and purposely battered by defendants POLICE OFFICER TONY YUNG and POLICE OFFICER "JOHN DOE" who used their vehicle with excessive force and violence in their handling and dealing with the plaintiff's decedent without just cause or provocation.

78. That on June 6th, 2019, defendant CITY and the NYPD, including but not limited to the defendants POLICE OFFICER TONY YUNG and POLICE OFFICER "JOHN DOE",

committed acts which caused the plaintiff TONY YUNG to apprehend that he was in imminent danger of being harmfully and offensively brutally assaulted, attacked, and violently and purposely battered by the defendants.

78. That by reason of the foregoing plaintiff KEVIN REYES was caused to sustain severe personal injuries.

79. That the aforesaid occurrence and resultant death of plaintiff KEVIN REYES were caused solely and wholly, through and by reason, of the carelessness, recklessness and negligence of the defendants in failing to instruct or properly instruct their personnel, particularly the officer/officers involved herein, in the manner in which they were to execute their duties; in failing to supervise, properly supervise and/or adequately supervise its personnel; in hiring employees with known violent propensities; in failing to employ and/or hire competent, able and/or knowledgeable officers; in failing to train and/or properly train their officers in the proper execution of their jobs; in failing to train, properly train and/or adequately train its police officers, agents, servants and/or employees, in the safe and proper execution of their jobs; in violating the applicable laws, statutes, codes, rules, regulations, ordinances, and industry standards in such cases made and provided; in the gross, wanton, reckless and willful acts of defendants, their agents, servants and/or employees; in causing plaintiff grave psychological and emotional injuries; they were otherwise careless, reckless and negligent and failed to exercise reasonable care and prudence, all without any fault or lack of care on the part of plaintiff's decedent thereto.

80. The limitations on liability set forth in CPLR Section 1601 do not apply to this action by reason of one or more of the exemptions set forth in CPLR Section 1602.

81. That by reason of the foregoing, plaintiff has been damaged in an amount which

exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

82. Plaintiff repeats, reiterates, and realleges each and every allegation of Paragraphs numbered “1” through “81”, inclusive, of this Complaint, as if same were fully set forth herein at length.

83. That on or prior to June 6th, 2019, defendants operated their motor vehicles upon the roadways in the County of Kings, City and State of New York in a dangerous, hazardous and reckless manner as hereinbefore set forth.

84. That on or prior to June 6th, 2019, defendants operated their motor vehicles upon the roadways in the County of Bronx, City and State of New York in dangerous, hazardous and reckless manner, more particularly, by giving chase and following persons operating motorized bikes and placing operators of said motorized bikes in danger of suffering severe bodily injury or even death by ramming their police department vehicles into said operators and/or motorized bikes, by using their police department vehicles to block the path of travel for said operators and/or by using their police department vehicles to barricade, enclose and/or trap said operators and/or motorized bikes upon the public roadways so as to create and cause a danger to plaintiff KEVIN REYES.

85. That prior to June 6th, 2019, defendants, their agents, servants and/or employees, knew or should have known of the dangers presented by the aforesaid negligent and carless conduct being employed thereat which created a danger to plaintiff KEVIN REYES.

87. That prior to June 6th, 2019, defendants, their agents, servants and/or employees, received actual notice of the aforesaid dangerous conditions.

88. That prior to June 6th, 2019, defendants, their agents, servants and/or employees, knew or should have known the methods used by their police officers placed persons lawfully operating their motorized bikes in danger of suffering severe bodily injury, and further that there

were different methods and/or departmental policies to be used to prevent the occurrence which took place herein that would have reduced or eliminated the dangers which existed otherwise, and which caused the injuries and untimely death of plaintiff KEVIN REYES.

89. That prior to June 6th, 2019, defendants, their agents, servants and/or employees received actual notice of the dangerous and hazardous conditions.

90. That prior to June 6th, 2019, despite having both actual and/or constructive notice of the aforesaid dangerous and hazardous condition, and knowing the means, methods and departmental policies to remedy same, defendants failed to utilize or implement said means, methods and departmental policies to reduce or eliminate said dangers.

91. That defendants' failure to utilize or implement said means, methods and departmental policies were negligent, carless and reckless.

92. That on June 6th, 2019, defendant POLICE OFFICER TONY YUNG, was operating a certain motor vehicle bearing license plate number (NYPD) 4760-19 in a dangerous, hazardous, negligent, careless and reckless manner so as to create and cause a danger to plaintiff KEVIN REYES.

93. On June 6th, 2019, defendant POLICE OFFICER "JOHN DOE" was operating a certain motor vehicle bearing license plate number (NYPD) 4760-19 in a dangerous, hazardous, negligent, careless and reckless manner so as to create and cause a danger to plaintiff KEVIN REYES.

94. That defendants actions were intentional, willful, reckless and grossly negligence.

95. That by reason of the foregoing, plaintiff claims punitive damages in a sum that exceeds the jurisdictional limits of all lower Courts to be determined by a jury at the time of trial.

AS AND FOR A FOURTH CAUSE OF ACTION

96. Plaintiff repeats, reiterates, and realleges each and every allegation of Paragraphs numbered "1" through "95", inclusive, of this Complaint, as if same were fully set forth herein at

length.

97. At all times herein mentioned, the defendants were acting under color of state law, to wit, under color of statutes, ordinances, regulations, policies, customs and usages of The City of New York and The State of New York.

98. At all times herein mentioned, the defendants' acts constituted state action.

99. On or before June 6th, 2019, the defendants developed and maintained policies, customs, and practices exhibiting deliberate indifference to the constitutional rights of persons in the City of New York, which caused a violation of the plaintiff KEVIN REYES' rights.

100. On or before June 6th, 2019, it was the policy, custom and practice of the defendants to improperly and inadequately investigate citizen and other complaints of police misconduct and acts of misconduct were instead tolerated, including but not limited to, incidents in the past where the defendants followed and chased persons operating motorized bikes without probable cause and allowed fellow police officers and employees to follow and give chase through the public roadways in the County of Bronx, City and State of New York, where they created a hazard and danger that police department vehicles could ram into and forcibly strike said operators and/or motorized bikes and cause serious bodily injury to those persons and further, allowed fellow police officers and employees to make false entries in official police department records, to issue false and fraudulent criminal complaints and accusatory instruments, and to cover up and hide wrongful conduct.

101. On or before June 6th, 2019, it was the policy, custom and practice of the defendants to fail to take steps to discipline, train, supervise or otherwise correct the improper and illegal conduct of the individual defendants in this and similar cases involving misconduct, thereby failing to adequately discharge further constitutional violations on the part of its police officers.

102. On or before June 6th, 2019, it was the policy, custom and practice of the

defendants to fail to require appropriate in-service training and re-training of police officers who were known to have engaged in police misconduct.

103. If certain individual defendants did not themselves engage in tortious conduct directed at the plaintiff, those individuals failed to prevent physical battery, assault and abuse of the plaintiff KEVIN REYES, or other tortious conduct by the other individual defendants directed towards the plaintiff KEVIN REYES, despite having a duty to do so.

101. As a result of the faulty policies, customs and practices of the defendants, the police officers employed by the defendant believed their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

102. The defendant's policies, customs and practices demonstrated a deliberate indifference on the part of the policymakers to the constitutional rights of persons within the City of New York, and were the cause of the violation of plaintiff KEVIN REYES' rights.

103. The plaintiff KEVIN REYES in no way provoked or encouraged the conduct of the defendants and the defendants' conduct was in no way privileged.

104. The defendants, acting in concert and individually, deprived the plaintiff KEVIN REYES of his civil, constitutional and statutory rights, and conspired to deprive plaintiff's decedent of such rights under the 1st, 4th, 5th 8th and 14th Amendments and 42 U.S.C. §§1981, 1983, 1985, 1986 and 1988, including but not limited to, the right to be free from arbitrary and groundless stops, the right to be free from cruel and unusual punishment and summary punishment, the right to be free from unlawful restrains on movement, right not to be subjected to imprisonment without due process of law, the right to enjoy equal protection of the laws, the right to have all legal rights enjoyed by persons, the right to be secure in person and property, the right to have persons entrusted with legal authority to act to enforce his civil rights to act to enforce such rights or be themselves adjudicated, the right to be free from excessive and

unreasonable force, the right to obtain timely medical treatment, the right to be protected as a prisoner, and the right to be free from conspiracies to violate his civil rights by those acting under color of state law.

105. By reason of the foregoing, the plaintiff KEVIN REYES was caused to be illegally deprived of his liberty and civil rights, caused to be assaulted, battered and caused to suffer severe and grievous injuries.

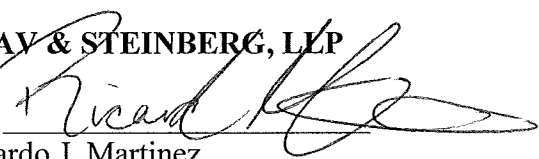
106. By reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

107. The limitations set forth in section 1601 of the CPLR do not apply to this action by reason of one or more of the exceptions set forth in section 1602 of the CPLR.

WHEREFORE, Plaintiff demands judgment against the Defendants, on each cause of action, in an amount to be determined upon the trial of this action, together with such punitive damages, interest, costs and disbursements as are appropriate to the action.

Dated: New York, New York
November 6, 2019

LEAV & STEINBERG, LLP

By: 

Ricardo J. Martinez

Attorneys for Plaintiff

KEVIN REYES

75 Broad Street, Suite 1601

New York, New York 10004

(212) 766-5222

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

KEVIN REYES,

INDEX NO.:

Plaintiff,

**ATTORNEY'S
VERIFICATION**

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, TONY YUNG, JOHN DOE (unidentified police
officer)

Defendants.

Ricardo J. Martinez, an attorney duly admitted to practice law in the State of New York, makes the following affirmation under the penalty of perjury:

I am of the firm of LEAV & STEINBERG, LLP, the attorneys of record for the plaintiff.

I have read the foregoing Summons and Complaint and know the contents thereof; the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because plaintiff does not maintain its principal place of business or live within the County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are correspondence had with the said plaintiff, information contained in the said plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
November 20, 2019


RICARDO J. MARTINEZ

Index No:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

KEVIN REYES,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
TONY YUNG, JOHN DOE (unidentified police officer)

Defendants.

Leav & Steinberg, LLP

Attorney for Plaintiff

Office & Post Address, Telephone

75 Broad Street – Suite 1601

New York, NY 10004

Telephone No.: (212) 766-5222

SUMMONS & COMPLAINT

To:

Service of copy of the within

is hereby admitted.

Dated,

Attorneys for Plaintiff

Please take notice

NOTICE OF ENTRY

that the within is a (*certified*) true copy of a
duly entered in the office of the clerk of the within named court on

2019

NOTICE OF SETTLEMENT

that an order
to the HON.
of the within named court, at
on
Dated,

20

at

M.

of which the within is a true copy will be presented for settlement
one of the judges

Yours, etc.

LEAV & STEINBERG, LLP

Attorneys for Plaintiff

Office and Post Office Address

75 Broad Street – Suite 1601

New York, New York 10004